

Table 3. Claims from the Second Edition of the Adult Treatment Court Best Practice Standards with Moderate or Strong Support

Claim	Additional Explanation
Contingency management can be especially effective for high-risk and high-need persons who may lack intrinsic motivation for change when they first enter treatment court or whose motivation may fluctuate when they confront stressors in their social environment such as family discord or interpersonal conflict.	The effectiveness of contingency management seems to depend upon other conditions being present (e.g., diagnosed with antisocial personality disorder, not currently being involved with the criminal justice system, having 100+ self-reported prior criminal acts).
Numerous studies have reported significantly better outcomes when drug courts developed a written strategy for delivering incentives and sanctions that was distributed to all team members, participants, and other interested parties.	Having a written strategy was effective when guidelines had a medium level of predictability (i.e., menu-based versus prescriptive) and when teams prioritized their use. Mixed and limited effects were found for merely having guidelines as part of policy.
Studies also find that outcomes are significantly better when staff periodically remind participants about their obligations in the program and the responses for meeting or not meeting those obligations.	None
Most treatment court teams reserve discretion to modify their responses in light of participants' individualized needs, and studies in drug courts have found that employing reasonable discretion in incentive and sanctioning practices was associated with significantly better outcomes.	Courts performed best when there was: (1) a larger number of available incentives and sanctions (i.e., do not consistently use a limited number of responses), and (2) there was a medium predictability to sanctions (i.e., menu-based system vs. prescriptive).
Treatment courts that include community supervision officers or law enforcement officers on their teams have significantly better outcomes.	Those roles are important to participant success, but team members should employ evidence-based practices such as core correctional practices.
Studies in drug courts and probation have also found that frequent drug and alcohol testing was associated with significantly higher program completion rates and lower rates of positive drug tests and criminal recidivism.	Treatment courts are more effective than traditional responses like probation because participants are tested more frequently. Research indicates testing should be at least twice weekly during Phase 1, but it's unclear if this should continue beyond that, as no research exists yet.
Outcomes are also better when drug courts and other criminal justice programs employ substance-use monitoring tests or practices that extend the time window for detection, such as sweat patches, continuous alcohol monitoring devices, or EtG/EtS testing.	There are a limited number of studies on sweat patches in treatment courts, but the research on continuous alcohol monitoring and EtG/EtS testing indicates improved outcomes with their use.
Numerous studies in adult drug courts have reported significantly better outcomes when participants attended status hearings on a biweekly basis (every 2 weeks) during the first phase of the program.	None
Studies in drug courts and other community corrections programs confirm that outcomes are significantly better when participants have more opportunities to earn incentives for their accomplishments than to receive sanctions for infractions, ideally at a 4:1 ratio of incentives to sanctions.	The 4:1 ratio has not been directly tested in the treatment court literature. However, available research indicates that a greater number of compliments/verbal praise is associated with higher graduation rates, lower substance use, and lower criminal activity.
Payment of treatment fees does not improve treatment outcomes.	The payment of treatment fees on treatment outcomes has not been directly tested in the treatment court literature.

Table 3. Cont.

Claim	Additional Explanation
In the criminal justice system, high-magnitude sanctions, including jail detention lasting up to a few weeks, have been shown to improve outcomes for high-risk (but not high-need) individuals on probation or pretrial supervision when the sanctions were delivered for avoidable infractions with certainty, celerity, and procedural fairness.	Swift, certain, and fair/graduated sanction practices appear to be more effective than sanctioning practices that do not follow that model. However, research suggests the most effective components are the certainty of detection and response, with a portion of that response requiring the addition of evidence-based therapeutic responses (i.e., targeting criminogenic needs).
Brief intervals of jail detention have been associated with better outcomes in drug courts but only when they were no longer than 3 to 6 days in length and were delivered in the later phases of the program when participants could satisfy more demanding requirements.	The available research suggests that brief jail stays are associated with higher graduation rates when they are administered at least 31 days after a participant is admitted to the program.
A substantial body of research on procedural fairness or procedural justice has determined that sanctions are most effective when participants are given a fair opportunity to voice their perspective concerning factual controversies and the appropriateness of the sanction before it is imposed, and when they receive a clear rationale for the judge's decision.	None
Studies find that jail sanctions in the first 30 to 60 days of treatment court are associated with lower program completion rates and higher criminal recidivism.	Program completion rates are lower when jail sanctions are imposed during the first 30 days of the program.
In later months or phases of treatment court, when participants can satisfy more demanding requirements, jail sanctions for repeated proximal infractions have been associated with improved outcomes.	Jail sanctions early in the program decrease the likelihood of program completion, but research has not identified what is generally considered proximal and distal goals.
Most studies have reported minimal gains from providing substance use treatment in jails or prisons.	The impact of in-custody treatment depends on the use of evidence-based practices that are implemented with fidelity.
Although specific types of in-custody programs such as therapeutic communities (TCs) have been shown to improve outcomes, the benefits from these programs were attributable to the fact that they increased the likelihood that persons would enter and complete treatment after release from custody.	Therapeutic communities have been shown to be effective in reducing substance use and recidivism, especially when combined with aftercare programs.
Studies find that marijuana use...reduces the likelihood that participants will successfully complete drug court...and increases traffic accidents and fatalities.	Individuals who were terminated from the treatment court were more likely to have tested positive for marijuana.
Studies consistently find that most participants enter drug court or mental health court primarily to avoid a criminal conviction or incarceration and outcomes are consistently better when participants avoid a felony conviction or incarceration if they complete the program.	Many individuals enter treatment courts to avoid incarceration (30-80%), but the literature is mixed on whether avoiding convictions or incarceration impacts recidivism. One meta-analysis did show that dismissing or expunging charges reduced drug recidivism.
Criminal recidivism is significantly higher, cost-effectiveness is significantly lower, and racial and other cultural disparities are significantly greater in drug courts that discharge participants unsuccessfully for continued substance use.	Automatic termination policies for new drug possession charges appear to lead to negative and disparate outcomes.